

Opinion of the Court

interpretation to such instruments than a jury; and he is, therefore, more likely to be right, in performing such a duty, than a jury can be expected to be.” *Parker v. Hulme*, 18 F. Cas., at 1140. Such was the understanding nearly a century and a half ago, and there is no reason to weigh the respective strengths of judge and jury differently in relation to the modern claim; quite the contrary, for “the claims of patents have become highly technical in many respects as the result of special doctrines relating to the proper form and scope of claims that have been developed by the courts and the Patent Office.” Woodward, *Definiteness and Particularity in Patent Claims*, 46 Mich. L. Rev. 755, 765 (1948).

Markman would trump these considerations with his argument that a jury should decide a question of meaning peculiar to a trade or profession simply because the question is a subject of testimony requiring credibility determinations, which are the jury’s forte. It is, of course, true that credibility judgments have to be made about the experts who testify in patent cases, and in theory there could be a case in which a simple credibility judgment would suffice to choose between experts whose testimony was equally consistent with a patent’s internal logic. But our own experience with document construction leaves us doubtful that trial courts will run into many cases like that. In the main, we expect, any credibility determinations will be subsumed within the necessarily sophisticated analysis of the whole document, required by the standard construction rule that a term can be defined only in a way that comports with the instrument as a whole. See *Bates v. Coe*, 98 U. S. 31, 38 (1878); 6 Lipscomb §21:40, at 393; 2 Robinson, *supra*, §734, at 484; Woodward, *supra*, at 765; cf. *U. S. Industrial Chemicals, Inc. v. Carbide & Carbon Chemicals Co.*, 315 U. S. 668, 678 (1942); cf. 6 Lipscomb §21:40, at 393. Thus, in these cases a jury’s capabilities to evaluate demeanor, cf. *Miller, supra*, at 114, 117, to sense the “mainsprings of human conduct,” *Commissioner v. Duberstein*, 363 U. S. 278, 289 (1960), or to reflect community